

14TH JUDICIAL CIRCUIT COURT, MUSKEGON COUNTY, MICHIGAN

ANDREW J. PIGORS, Plaintiff, v. EMILY WATSON, et al., Defendants.

Case No. 2024-001507-DC

LEGAL THEORIES AND AUTHORITY CHAINS -- Shady Oaks

MICHIGAN RICO (MCL 750.159i)

- * MCL 750.159a -- Definitions (enterprise, pattern of racketeering)
- * MCL 750.159g -- Prohibited conduct
- * MCL 750.159j -- Treble damages + attorney fees
- * *People v Martin*, 271 Mich App 280 (2006) -- RICO enterprise elements
- * *Sedima SPRL v Imrex Co*, 473 US 479 (1985) -- Civil RICO standing

MOBILE HOME COMMISSION ACT (MCL 125.2301 et seq.)

- * MCL 125.2307 -- Prohibited practices
- * MCL 125.2308 -- Maintenance standards
- * MCL 125.2310 -- Eviction protections
- * Michigan Administrative Code R 125.1901-1969

TRUTH IN RENTING ACT (MCL 554.631 et seq.)

- * MCL 554.634 -- Prohibited lease terms
- * MCL 554.636 -- Remedies for violations

SLANDER OF TITLE

- * *B&B Investment Group v Gitler*, 229 Mich App 1 (1998) -- Elements
- * MCL 565.108 -- Marketable title act

CONSTRUCTIVE EVICTION

- * *Automobile Club of Michigan v State Farm*, 105 Mich App 328 (1981)
- * *Grinnell Bros v Asiuliewicz*, 241 Mich 186 (1928)

HOUSING CODE ENFORCEMENT

- * MCL 125.401 et seq. -- Housing law of Michigan
- * MCL 125.534 -- Penalties for violations
- * Muskegon County housing ordinances [VERIFY specific codes]

CONVERSION

- * *Thoma v Tracy Motor Sales*, 360 Mich 434 (1960) -- Elements
- * *Head v Phillips Camper Sales*, 234 Mich App 94 (1999) -- Mobile home conversion

DAMAGES MULTIPLIERS

Count	Multiplier	Authority	----- ----- -----	RICO	3x compensatory
MCL 750.159j	Consumer Protection	3x actual	MCL 445.911	Truth in Renting	Actual
+ \$250 per violation	MCL 554.636	Abuse of Process	Punitive available	Common law	